



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

May 1, 2024

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202207747 (Incident Date: November 6, 2022) regarding Police Officer Emilio Perez, Tax No. 967248 (DADS No. 2024-29977)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in connection with CCRB Case No. 202207555, pertaining to Police Officer Emilio Perez. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that no disciplinary action is warranted in connection with the substantiated allegations.

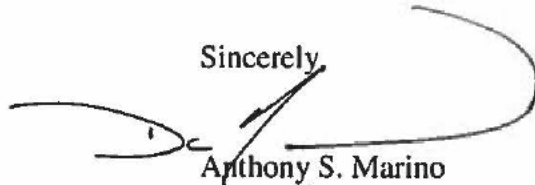
The Police Commissioner has determined that the available body worn camera footage shows that Police Officer Perez did not intentionally damage the complainant's E-bike. Police Officer Perez was assigned by his supervisor to transport illegal E-bike's to the precinct in the Department van. Police Officer Perez believed he exercised due care by placing the kickstand down to ensure the E-bike was sturdy enough for transport. Police Officer Perez also stated that he drove slowly and followed traffic on his way back to the precinct. Body worn camera footage captures Police Officer Perez discussing how concerned he was about the issues that could arise, if the E-bike were to become damaged. The Police Commissioner has determined none of the actions of Police Officer Perez show a uniformed member of the service who intended to damage the complainant's property. Rather, a member of the service who attempted to exercise due care when transporting the complainant's property. Unfortunately, an accident occurred, and discipline is not the proper action to take, in this circumstance. To issue discipline for an accident, would not be in the interest of justice.

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Therefore, based on the foregoing, the Police Commissioner directs that no disciplinary action be imposed for the allegation that Police Officer Perez damaged the complainant's property.

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', with a large, sweeping loop at the end.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office